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IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

CA (Writ) Application No. 689/2011

In the ma ter of an application for
mandates ih' the nature of Writs of
Certiorari and Mandamus in terms of
Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

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Lt. Cdr. Samantha Pushpakumara Pathirage, iAsiri', Temple ROc;Jd,
Kandana, Horana.

Presently in the custody of
Welikada Prison.

PETITIONER
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Vs.

1. Vice Admiral Jayantha Perera, The Commander of the Navy, Naval Headquarters, Colombo 1.

2. Rear Admiral D. S Udawatte Naval Headquarters,
Colombo 1.

3. Commo1.1 ore J. J Ran~s nghe \
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Colombo 1.

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4. Commoqore P. R. B Dissanayake, Naval Hdadquarters,

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Colombo 1.

5. Rear Admiral S.P. Fernando, Judge Advocate,
Naval Headquarters, Colombo 1.

6. Commodore M. N. H. Gamage, Naval Headquarters, Colombo 1.

7. Captain C.S. Dahanayake, Additional Provost Martial,
Naval Headquarters, Colombo 1.

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8. The Hon. Attorney General, Attorney General's Department,
Colombo 12.

RESPONDENTS

Before: Arjuna Obeyesekere, J

Counsel: J.M.Wijebandara with Ms. Shalani Chandrasena for the Petitioner

Ms. Anusha Fernando, Deputy. Solicitor General for the Respondents

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Written Submissions: Tendered on behalf l:Jf the Petitioner on 12th December 2018

Tendered on behalf of the Respondents on 2nd
November 2018 "
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Decided on: lAth February 2019

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Arjuna Obeyesekere, J

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When thi~ application was taken up for argument on 12th September 2018, the, learned Counsel for the parties informed Court that written submissions have been filed and moved that this Court pronounce judgment on the said written submissions as well as the further written submissions that would be tendered.

The Petitioner has filed this application, seeking inter alia the following relief:

a) A Writ of Certiorari to quash the proceedings of the Court Martial held by the Sri Lanka Navy against the Petitioner;

b) A Writ of Certiorari to quash the verdict of t he Court Martial delivered on 2nd November 2011;

c) A Writ of Mandamus directing the Petitioner to release the Petitioner from the custody of the Sri Lanka Navy.

The facts of this application very briefly are as follows.

The Petitioner had joined the Sri Lanka Navy on 30th July 1997 as an Officer

Cadet and was serving as a Lieutenant Commander at the time Court Martial proceedings were instituted agafnst him. The Petitioner states that in 2008 he
was appointed as the Supplies Officer and assigned duties relating to the . I maintenance of dry rations within the Naval establishment tNipuna'. The scope

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of his duties included the regular procurement of dry rations from registered

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suppliers and the supervision of the distribution of the said dry rations to the relevant kitchens.

On 30th September 2011, the Petitioner had been served with a charge sheet annexed to the petition marked 'Pl' containing 9 chargesl

. These charges
relate inter alia to certain irregularities that took place in the procurement of dry rations and the onward supply of such dry ations to the Naval kitchens and thereby acting contrary to Naval discipline and good order.

The 1st Respondent Commander of the Sri Lanka Navy had appointed a Court Martial consisting of the 2nd - 4th Respondents to inquire into the said charges. The Court Martial proceedings had been held: over s~veral days w ith the
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participation of the Petitioner. While the prosecution had led the evidence of 4 witnesses, the Petitioner had opted not to lead any evidence or t o give
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evidence on his behalf. At the conclusion of the said proceedings, the prosecution had withdrawn three charges and the Petitioner had been found guilty of the rest of the ch~rges by the Court Martial which had sentenced the Petitioner to a 2 year period of imprisonment., The Court Martial had also recommended that t he Petitioner be discharged dishonourably from the Sri Lanka Navy. Being dissatisfied with the said decision, the Petitioner had

submitted an appeal2 on 8th November 2011 to HE the President in terms of Section 122 of the Navy Act and thereafter filed this application on 26th

December 2011, seeking the aforementioned relief. By letter dated 27th April 2012, produced by the Respondents marked 'R2', the Secretary, Minister of Defence and Urban Development had irlformed the 1st Responpent that HE the

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President has approved the sentence imposed by the Court Martial.
1 A signed copy of the charge sheet has been produced by the Respondents marked 'Rl'.
2 A copy of the appeal has been annexed to the petition marked 'P2'.
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The Petitioner's complaints to this Court are three fold. In considering the said ,
complaints of the Petitioner, this Court must remember that what this Court is , exercising in this application is its Writ jurisdiction and not its appellate jurisdiction. The distinction between these two remedies has been set out in "Administrative Law" by H. W. R. Wade. and (.F Forsyth3 in the following

manner:

"The system of judicial review is radically different from the system of
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appeals. When hearing an appeal the court is concerned with the merits
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of a decision: is it correct? When subjecting some administrative act or order to judicial review, the court ~~ concerned with it,s.legality: is it within the limits of the powers granted? On an appeal the question is {right or wrong?' On review the question is {lawful or :unlawful?'

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Rights of appeal are always statutory. Judicial review, on the other hand, is the exercise of the ~ourt's inherent power to determine whether action is lawful or not and to award suitable relief. For this no statutory authority is necessary: the court is simply performing its ordinary functions in order to enforce the law. The basis of judicial review, therefore, is common law. This remains true even though nearly all cades in administrative law arise under some Act of Parliament.

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Judicial review is thus a fundamental mechanism for keeping public authorities within due bounds and for upholding the rule of law. Instead 1 ,
of substituting its own decision for that of some other body, as happens

3 11th Edition at page 26.
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when on appeal, the court on review is con erned only with the question whether the act or order under attack should be allowed to stand or not."

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The above position has been consistently followed by this Court over the years. In Kalamazoo Industries Ltd v. Minister of labour & Vocational Training and others4

, the petitioners sought a Writ of c~rtiora i to quash an arbitral award. Dismissing that application, this Court stated as follows:

"This court must keep prominently in forefront that it is exercising in this instance a very limited jurisdiction quite distinct from the exercise of appellate jurisdiction. Relief by way of certiorari in relation to an award
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made by an arbitrator will be forthcoming to quash slJch an award 'only if the arbitrator wholly or in part assumes a jurisdiction which he does not have or exceeds that which he has or acts contrary to principles of natural justice or pronounces an award which is eminently irrational or unreasonable or is guilty of an illegality. Th ~ remedy by way of certiorari cannot be made use of to correct errors or to substitute a correct order for a wrong order and if the arbitrator's award was not set aside in whole or in part, it had to be allowed to stand un-reversed.

In the circumstances the objective of this court upon judicial review in this application is to strictly consider whether ~e whole or part of the award
of the arbitrator is lawful or unlawful. This court ought not to .exercise its
appellate powers and jurisdiction when engaged in the exercise of supervisory jurisdiction an-d judicial review of an award of ~n arbitrator."

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4 [1998]1 Sri LR 235 at 249.
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A similar view was expressed in Public Interest Law Foundation v. Central Environmental Authority and anotherS where thi~ Court held as follows:

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"There is a distinction between appeal and review. If one appeaJs against
a decision, one is claiming that the decision is wrong and that appellate authority or court should change th(~ decision. The Court of Appeal, if it is

persuaded by the merits of the case (appeal), may allow the appeal and ,
thereby substitute its view for that of the Court or tribunal of first instance. Under judicial review procedure, the Court of Appeal is not concerned with the merits of the case, that is, whether the decision was right or wrong, but whether the decision is lawful or not. In the words of Lord Brightman: "Judicial review is concerned, not V)lith the decision but

with the decision making process" (Chief Constable of North Wales Police I
v. Evans [1982] 1 WLR 1155 at 1173). It is worth observing that the review procedure is not well suited to det€:rrpination of di§puted facts-factual issues arising in this case being imprecise and disputed."

The first complaint of the Petitioner is that the evidence led at the Court Martial does not disclose any involvem ~nt on his part and, on the basis that there was no evidence against the Pet itioner, it was submitted by the learned Counsel for the Petitioner that the decision of the Court Martial is illegal, arbitrary, irrational and unreasonable.

Lord Diplock, in his classic statement on judicial review in Council of Civil Service Unions vs Minister for the Civil Service6 has identifiep irrationality as

5 [2001] 3 Sri LR 330 at 334.
61985 AC 374.

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one of the grounds upon which administrative action is subject to control by judicial review, which he has described in the following manner:

"By (irrationality' I mean what can now be succinctly referred to as (Wednesbury unreasonableness,7. It applies to a decision which is so outrageous in its defiance of logic or of accepted moral standards t hat no
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sensible person who had applied his mind to the question to be decided could have arrived at it."

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A. consideration of the s~id complaint of the Pet itioner requires this Court to consider whether the evidence led before the Court Martial was sufficient for the Court Martial to have arrived at the aforesaid decision.

According to the Respondents, the modus operandi followed by the Petitioner, as borne out by the evidence led before the Court Martial, was as follows. The supplier of the dry rations, a company this Court shall refer to as (AA' for the reason that they are not a. party to this application, acting in concert with the Petitioner who was the Supplies Officer, would supply to the Sri Lanka Navy quantities less than what is requested by the purchase orders. The Petitioner would direct the Store Keepers, who gave evidence before the Court Martial, to enter the quantities requested by the Purchase Orders in the relevant books, although the quantities supplied are less than what is entered in t he books. The Petitioner had directed the Store Keepers to hand out quant ities
less than what is ought to be given when handing over food items to t he kitchen but enter in the books the correct quantities. In t,his manner, the

7 Associated Provincial Picture Houses Ltd v Wednesbury Corporation 1948(1)KB 223.
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quantities short supplied by the supplier is offset by the lesser quantities
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actually supplied to the kitchen.

It was also in evidence that the Store Keepers maintained a table setting out the quantities that were short supplied to the Stores as well as supplied to the kitchen, and that this table wa~ made available. to the Petitioner whenever

requested.8

Although it was alleged by the Respondents that the Petitioner accepted money from the supplier, the Respondents conceded that it did not have any , . direct evidence of this fact except the evidence of t he three Store Keepers who stated before the Court Martial that the Petitioner had giy~n them large sums of money for carrying out his instructions. It is in this factual background that the charge sheet was issued to the Pet~tioner alleging that the above conduct of the Petitioner was contrary to Naval discipline and good order.

The argument of the Peti.tioner that there was no evidence against him to prove the charges has been contradicted by t he learned Counsel for the Respondent who has drawn the attention of this Court to the following evidence9

, which sets out the involvement of the Petitioner.

Evidence of Abeyratne10

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8: @t»M @tD)(!)>irlro6 OOQ@C55 ~c;)Je~®) ~®~. ,

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8 Page 6 of the proceedings of 2ih October 2011 before the Court Martial- evidence of Abeyratne. 9 The entire proceedings before t e Court Martial has been annexed to the petition, marked 'X'. 10 Page 6 of the proceedings of 2ih October 2011 before the Court Martial. '
11 i.e. to carry out the modus operandi referred to earlier.
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~: ~)(!~~ (i)C) ~cl (i)Q)C) @Q» ~aS~?
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00) Q®(5)Q ~) ~~ ~l:~ ~&:» &@ ~~ ~ ~~ ~) &@)?12
8: ~clc.o ~®rft).

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The fact that the Petitioner shared the money that he received from the

supplieris borne out by the following evidence.

Evidence of Senadheera13

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12 Page 30 of the proceedings of 2ih October 2011 before the Court Martial.

13 Page S3 of the proceedings of 13th October 2011 before the Court Martial.

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8: ot»o~~ cxS.

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s: ot»o~~ cxS.

Q: ~el)@~t;. @ID~eD~eD?
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Q: ~t;.@ ~6)J09 ~®eDt;. ~~eD?
s: ~t;.@ ~6)J09 ~®eD ~ t;,)@) ~eD~eD.

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8: ~~ei>® ~ei>eD ~s 6)lC5>l. ®® (fO (f~~eD CS)rnrn ~e>>C) m®) ~eei>® ~~. ~

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Q: ~ ~ (f~~@ m®es50 ~ ~t;.@ @G» ~~eD
S: Qlog® eDSc;)>C3.

Q:~~eD~?

s: oa>o~~ cxS.

Evidence of Abeyratne14

14 Supra. Page 11.

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S: ooe ~®~.

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Evidence of PO Chandrasiri15

Q: Q)~Z; {i)Q) CS)oz; erCJrom:o ~~C)C) 6)t»O 60®C) QO<!> &Dco) SuCO) (!®@) ~o~~ ~eo® c:o®Q>~ OOQ)C) c.o®6S §~@tm @Z;@6) Q)OO
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g: (!Im>o®rlf> §~~ (i)Q)C) @z;@rlf>~?
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g: ~z;eD li)co §~@ 0000 @z;@~ &l»(!es>eD~?

s: Qz;og® B>@QX3~®)(!cs)eD ~®~.

Q: (!Im)(!~~ li>c.o §~@ @Z;~eD?
g: c:oz;og® B>SQX3~®)(!cD Im>dCO)@(!~.

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g: ~Z;eD li>c.o §~@ @Q>~eD(!eD (!~6eD~ (!6)JC)g ~®eD~? S: (!6)JC)g ~®eD OJ®~.

15 Page 31 of the proceedings of 2ih October 2011 before the Court Martial.

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The above evidence led before the Court Martial clearly sets out the
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involvem'ent of the Petitioner with regard to the matters set out in the Cha ge

Sheet 'Pl'. It is clear to this Court t hat the decision of the Court Martial is ,

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based on the evidence led before it. The said decision is certainly not outrageous and is a decision that any sensible person who had applied his mind to the evidence led before the Court Martial would have arrived at.

In these circumstances, this Court cannot accept the submission of the Petitioner that the evidence led at the Court Martial did not implicate the Petitioner or that the conclusion reached by the Court Martial is unreasonable or ultra vires its powers. For the above reasons, this Court does not see any merit in the first complaint of the Petitioner.

The second complaint of the Petitioner is that the prosecution rel ied on the evidence of three Store Keepers who had also been charged for the same offences and that it is unsafe to act on their evidence, as the said Store Keepers were accomplices. The Respondents have in fact conceded that the prosecution relied mainly on accomplices to prove the charges aga inst the Petitioner, as the acts referred to in the charge sheet have been carried out by the Petitioner by using his subordinates.

At the outset, this Court observes that the matters set out in the charges were , discovered during an investigation that was carried ou~ by Lieutenant \

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Commander Dassanayake of the Provost Division of the Sri Lanka Navy. In order to prove the charges against the Peti~ioner, it was open to the

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prosecution to lead the evidence of the Naval officers who assisted the
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Petitioner in carrying out the said activities. The only other party who could have ~ee~ summoned to give evidence Mias the supplier, who too was involved with the Petitioner. Thus, the prosecution was left with no option but to lead the evidence of the three store keepers who had assisted the Petitioner and allow the members of the Court Martial to take a decision, after having considered the truthfulness and 'reliability of the said witnesses.

The question that arises from the second argument of the learned Counsel for

the Petitioner is whether an accomplice is a competent witness. In terms of , .
Section 133 of the Evidence Ordinance, Ian accomplice shall be a competent witness against an accused person, and the conviction js not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.'
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Section 133 should be considered with Section 114 illustration (b) of the Evidence Ordinance, which reads as follows: "The Coud may presume an accomplice is unworthy of credit, unless he is corroborated in material particulars."

If Section 114 illustration (b) presupposes the unreliability of the accomplice's evidence, why does the prosecution depend on the evidence of an accomplice? One explanation is that there may be instances where it is difficult

and sometimes impossible to detect offences which have been secretly I
planned and executed without obtaining the evidence of a partner in crime. Unless their evidence is led, those responsible cannot be held accountable for the crimes that they have committed, thereby making tbe evidence of accomplices essential for the prosecution.

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This Court observes that the Petitioner, as a senior Commissioned Officer of
the Sri Lanka Navy was required to act with utmost honesty and adhere to high standards .. of discipline required of a Commissioned Officer. Any breach thereof . ,
has to be taken serious note of. Thus, in order to establish its case and ensure
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that any breach of discipline is dealt with, this Court is of the view that the prosecution was entitled to lead the evidence of the three store keepers, and leave the decision as to whether their evidence is truthful and reliable to the members of the Court Martial.

The combined effect of sections 133 and 114 illustration (b) is that it is not illegal to convict on uncorroborated eV,iqence of an accomplice, even though it
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may be dangerous and unsafe to do so. What then are the ~afeguards that can be adopted?

The Respondents have cited the judgment in P. Si1/asambu, ~Inspector of Police

vs Nugawela16 where it was held that, while it is not illegal to proceed on the

uncorroborated testimony of an accomplice, ((it is necessary that the Magistrate should have clearly before his mind the fact that he is dealing with the evidence of an accomplice and he must give dear and satisfactory reasons for convicting in the absence of corroboration."

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In Fernando vs The Republic of Sri L~ ka17 the appellant was indicted on a charge of voluntarily causing a 'woman to miscarry, an offence punishable under Section 303 of the Penal Code. The woman had been a voluntary participant in the commissioning of the offence and came withi"n the definition

16 41 NLR 363 at 368.
17 1980 (2) Sri LR 79
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of an accomplice. In considering whether the jury, had been adequately warned of acting on the evidence of an accomplice, this urt stated as follows: 18

liThe learned trial Judge no doubt has cautioned the jury several times in
his summing-up against accepting Janet's evidence without c~reful scrutiny for the reason that the whole prosecution case more or less
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rested on her evidence. But he has failed to direct them that her evidence

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must be treated as that of an accomplice and that it is tainted evidence ... As a matter of fact he was about t o conclude his summing-up without any direction on this aspect of Janet's evidence when prosecuting state counsel drew his attention to sections 114 illustration (b) and 133. But even then his emphasis was more on section 133 and ~ection 114 was left ....
to be dealt with only in the last paragraph of his summing-up. That was just a bare recital of the section ... "

The cumulative effect of the above judgments i's' that it is not illegal for the prosecution to rely on the evidence of the three St ore Keepers who confirmed the involvement of the Petitioner and disclosed the modus operandi adopted by the Petitioner to prove the charges made against the Petitioner, as long as the members of the Court Martial, w ho are the judges of fact and law, are warned of the perils of aCting on the evidence of accomplices and advised that they must be satisfied of the truthfulness and reliability of the said witnesses,
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prior to acting upon such testimony.

As the learned Counsel for the Petitioner has strenuously a.rgued that it is unsafe to act on the evidence of the three store keepers, this Court has

18 Ibid; at page 81.
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examined carefully the direction of the Judge Advocate to the members of the Court Martial, in order to see if the members of the Court Martial had in fact

been apprised of the correct legal position. 19 The Judge Advocate has . , ,

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explained in detail to the Court Martial, the presumption of innocence, the fact I , that there must be proof beyond reasonable d~ubt, that any benefit of the I.
doubt must be given to the Petitioner, that they must assess the credibility of the witnesses, and arrive at a decision .otf guilt on the part of the Petitioner only if they are satisfied that their evidence is credible. 20

Having done so, the Judge Advocate has explain~d the provisions of Section ,

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114 illustration (b) and 133 of the Evidence Ordinance and had stated as follows:

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8®CS>t» (;6»(5)z;tS) c:OCB (i)OO 6X:>~ &l>@ (5)l;&l>. ~oS (i)Q) ~ 6)o~ ~c:OCB ~~ es>z;m. ~a5® ere C)(5)~<D Q)~ ®m o®~ ~en® ~ o®~ ~t;,&l>Cz; 6O®oS 8>6)e~oJe) e)6i~~ es>z;m. es>~oS ere C)(5)~~~<D Q)Q$co (i)Q) g~®6i ~@fe~ &l>@ ~ ~. ~~ ~e) ~ ~~ ~ ~C)
~ e ffz;6) t»z;es>z;~t»d ~ t»z;es>z;oSm) Q)@)l8csS ~ ~oS ~~ ffgtDO
cs>z;~ Q)Q$ ~t;,es>e)t;, ~es> (i)Q) @t»>®oS ~~@6i Qz;s6@@C> mQ) ~ea. ~cS
Q)@)l8<D ~ ~(S» (i)§} ffQQ)ZS Q)~ ~~~ ~ ~6@@C> cs>z;8>® (i)Q) e&D @t»>®oS® cacSeo®6i &l>@g~ Q)e) ®) (i)Q) ~~ ~t;,cS ~®C) fft;,CS>cS &l>Oes>e).

~csS21 C)~ ffOO)c;) ~~~csS Q)~ (!t;,Q Q)@es> t;,a~~J~~
(i)Q) Q)z;@;:) ~~. Q>®>es:JZS ffOO)c;) ~~ 6>®6i ~me ~es> ' ff~ ff@@)
cs>z;~ ~ &l>Ces> ffe>c5C» ~~e) ~~ Q®)6)ZS ®~ZS cs>~ ~IDz;een ~®
19 Page 185 of the proceedings of the Court Martial, annexed to the petition marked 'k1'. In terms of Section 39(d) of the Navy Act, it shall be the duty of the Judge Advocate at'the conclusion of the case to 'advise the court martial upon the law relating to the case before the court ~artial proceeds to deliberate upon its finding.'
20 Pages 171 and 198 of the proceedings of the Court ~rtial, annexed to the petition marked 'Xl'.
21 Evidence of Abeyratne. ,".,
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C)~ ooz; ~@C) C)~ ~6S~ ~es> (i)Q) Qz;@tS5@@C) mOl goJ~ ffi@ID~) ~cl Qz;@6@@C) emes> ~ C)~Z;ecD C)~ e~es>m. m~z;~ecD C)~ ~clCz; 00es> er>tmxx"o® ®) ~en coe~cl et~ ol~z; , 00 0000 ~® C)~Z;ecD C)~ S@Q>t;,~ S)CS)®es>~ cz;®!Ii}e® (5)z;eG)~ ffie~).

~z;~ era ~~cD C)~ € @Q>~ 00Q) ~en C)@t:sl) Q)z;®co goJffi.

~~ ~ o®~® ~cD C)~ Q~ ~e® er~mD~ enz;eoz;.

Qz;@z;e@e@en C)ei) @Oll®m® ~e®en oo~cD C)~ C)@&D) IDz;@®O ooIDecD

er~(JJeS)G) eG)~@ g~G)."

This Court is of the view that the above direction of the Judge Advocate was sufficient guidance to the members of the Court Martial of the manner in which the evidence of the three store keepers should be considered. The

decision of the Court Martial has been arrived at only after having the benefit ,
of the said direction. This Court is therefore of t he view that the members of

the Court Martial have arrived at their decision, after having been correctly ~ apprised of the law and after having been satisfied of the truthfulness and reliability of the evidence of the three store keepers. This Court, in the exercise of its Writ jurisdiction, will not interfere with the said decision, in the absence of any illegality, irrationality or procedural impropriety. In these circumstances, this Court is not in agreement with the second submission of the Petitioner.

The final complaint of the Petitioner was that the three witnesses were produced at the Court Martial fr~m Naval custody and hence, it is unsafe to act

on their testimony. The argument of the Pe i~ioner was that the three . ,
witnesses may have been provided wit~ an assurance of leniency in return for implicating the Petitioner.

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This Court must observe that in terms of Section 256(1) of the Code of Criminal Procedure Act No. 15 of 1979, as amended, lithe Attorney-General himself
may, ~ith the view of obtaining the evidence of any person supposed to have
been directly or indirectly concerned in or privy to the offence under inquiry, tender a pardon to such person on condition of his making a full and true disclosure of the whole of the circumstances within his knowledge relative to
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such offence and to every other person concerned whether as principal or abettor in the commission thereof." Thus, the course of action followed by the prosecution is part of the criminal justice system. of this country and hence, this Court does not see any illegality in the prosecution leading the evidence of the three store keepers.

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While the Respondents as we" as the ~;~itnesses have denied the allegation of the Petitioner, the Judge Advocate, having addressed the members of the Court Martial on how to assess the credibility of a Witness and having addressed them that the Petitioner must be acquitted if the members of the Court Martial are not satisfied about the credibility of the witnesses, has stated as fo"ows:22

"8®@) C)~z; era ~ ~) C®mm @eD>e) Q)@Ot® ®rn ~ W® ffC)@~ @G)~ ®rn C)~ ~ei) C)~z;~ ~~ e>d~c.o ~~® Im@). e>mB>c.o CS)@~

i C)~z; ~ @cSei>)(JQ@~ C)~ m®Q)~(,.)~m i j!®® C)~z;@c5S C)~~m . ~) ~®C) cmmel) CS)@@ OOrn@(5)Jc,.)ei»G»Q@cl erID~cl SO C)~®C) oz;®il)

@®~ ~rnm OOrn@(5)Jc,.)ei»G)>Oc.o ~rn® c.oes>e» ~ ~ ~ ei)>e>cn ~~ C!i»Q@cl. ~~ (j)§es5@c5S (5)Z;~ ~eO! c.o® sa ~ Q)@)@O)@o>oS~@~ 8®@) e>mB>ooz;C) ~61e) (i)~~ C))o$ @~ei) Q)e> e>rnmc.o ~ c~ .. Im@).23

22 Ibid; Pages 189, 190 and 195 of the proceedings before the Court M'artial.
23 Page 190 of the proceedings before the Court Martial.

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• ~Q)l;eesS 1 e:>6) ~e>~es»e> Q®Q)esSeJ~~ cOO> Q@&l>}Q)l;~ ~~m q~@ &l»@~ ~@~
~ q~d ~ 85@CJJ&) SO es>~ S)ffiC)C) C)C)m ~(S)@~ ~~
~CDes> ql;ffi ~® emffits>Ol; q)(S)Q (5)Q)d)Je) ~e>6?esS ~e»~~ ~m ~
t%tQx:>es> q)(S)Q e@ee>esS ~CS>esS ®B®C) CO@~c5 ~esSeD)~, ~@C) E)o56)ts>Ol; ~e>l;~
CO@~~ ~®fm ~ q)&l>a~ ~es>)tl)@ qmC c)~l;e>esS Ci>§esS ~~@C) C~~c5 ~esS
Q)e> ~ &l>~cDe>m Q)@~ m® c)~l;e>esS ~@C) ~ (i)~esS~~
C!Q)a®C)es>® ~c5m es>l;meD® C)~~es> e@)C)(',:) Ql;@tS>@@C) G)l;~®eD ~ c)~l;e>~~ C)cs& S®G)l;6)®C) Ci)Q)C) c,,® ~~ ql;OO® ~~ qe>cX)~ (i)Q) q~~~ emffitnOl; ~~ei>cS ®e®tlS &l>@ ~G)."24

Thus, while it is not illegal to act on the evidence of the said witnesses merely because they were produced from Naval custody, the members of the Court Martial who are the sole arbiters of th$ facts and the law, were fully apprised of the objection taken by the Petitioner. The Judge Advocf3te had directed that the Petitioner be acquitted of the charges, in the event the Court Martial was of the view that the evidence of the three store keepers may have been

" , compromised. As held earlier in this judgment, this Court i"s exercising its writ jurisdiction and therefore, will not go into the question of whether the decision of the Court Martial is right or wrong. That of course does not mean that this Court has any doubt with regard to the findings of the Court Martial. For these reasons, this Court does not agree with the final complaint of the Petitioner.

In the above circumstances, this Court 'does not see any legal basis to issue the ';j
Writs of Certiorari sought by the Petitioner. The necessity for this Court to

consider the Writ of Mandamus to release the P~titioner from the custody of ,
the Sri Lanka Navy does not therefore arise.

24 Page 195 of the proceedings before the Court Martial.

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• There is one other matter that this Court would like to advert to, that is the

submission of the learned Deputy Solicitor Gen ral that the application of the Petitioner is futile as HE the President has confirmed the findings of the Court
Martial. It has been consistently held by our Courts that the Writ of Certiorari,
being a discretionary remedy will not issue wh~re it is futile to do so and that
the Court will not engage in an exercise in vain.25 This Court, while being reluctant to exercise its discretion where it would be futile to do so, takes the view that it would be open to this Court to issue the Writ in any case in which the facts and circumstances warrant su.ch a course of action. In this application, as the Court Martial findings have been confirmed by HE the President, this
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Court takes the view that even if the Petitioner: was to succeed on the above grounds urged on his behalf, issuing the Writs pr;Jyed for """ould be futi le as the confirmation of the decision of the Court Martiat would remain intact.

The application of t he Petitioner is accordingly dismissed, without costs .

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Judge of the Court of Appeal

25 See P.S.Bus Company vs Ceylon Transport Board 61 NLR 491 at 49S; Ratnasiri vs Ellawala 2004 (2) Sri LR 180 at 208. See also Kavikeshawa vs Lt. Gen. Jagath Jayasuriya rCA (Writ) 260/2011; CA Minutes of 3

rd September
2012] where it was held that, "issuing orders quashing decisions that had been superseded by subsequent orders or decisions which are not challenged, is futile. /I

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